



Delaware County Council Meeting October 26th 2021

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=e8usf3rttUo
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Delaware County Council Meeting Summary

Meeting Date: October 26, 2021

Location: Delaware County Commissioner's Courtroom

1. Pre-Meeting Hearings & Committee Work Sessions

- **Session Type & Topic:** Statutory Public Hearing on Solar Farm Abatements [00:01:27](#)
 - **Summary of Discussion:** The council opened separate public hearings for two proposed solar energy projects: Hawthorne Solar LLC and Meadow Forge Energy LLC. No members of the public stepped forward to speak for or against either project during the hearings. Both public hearings were successfully closed via roll call votes.

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer called the Delaware County Council regular meeting to order following the Pledge of Allegiance [00:00:29](#).
- **Attendance:**
 - **Present:** Mr. Ballard, Ms. Chambers (President), Ms. Lasseter, Ms. Piper, Mr. Quakenbush, Mr. Webb, Mr. Alexander, Mr. Hughes [00:01:12](#).

- **Absent:** None noted.
 - **Presiding Officer:** Ms. Chambers.
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3. Preliminary & Procedural Business

- **Ceremonial Openings:** Opening Pledge of Allegiance led by Denise [00:00:36](#).
 - **Approval of Minutes:** The minutes of the September 28 meeting were approved via roll call vote [00:05:29](#).
 - **Agenda Adjustments:** A tabled item regarding project income from September was moved down to the financial transfers section [00:05:58](#).
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4. Substantive Business & Board Action

- [00:06:08](#) **Resolution 2021-037: Meadow Forge Energy LLC Tax Abatement**
 - **Sponsor / Presenter:** Brad (Economic Development / Assessor) and Kyle Russ (Attorney representing the developer).
 - **Deliberation Summary:** Brad presented the \$155 million project located at 16500 North 600 West, Gaston, IN, which includes solar modules, racking, inverters, and transformers. The project is estimated to generate \$32.7 million in new county revenue over its life, with a tax abatement of roughly \$5.09 million. Council member Quakenbush inquired about the term “manufacturing equipment” used in the application; Kyle Russ clarified that utility distributable property falls under the “manufacturing equipment” designation on standard State Board 1 (SB1) tax abatement forms. Tom Skoder (Invenergy) addressed questions regarding power distribution (targeting utility companies or large corporations), construction timeline (early 2023 to mid-2024), and landscaping/buffering (complying with county zoning guidelines by using shrubbery/trees around non-participating residences and deer fencing).
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved via roll call vote (Ms. Lasseter abstained; all other members voted “Yes”) [00:16:49](#).
- [00:17:18](#) **Resolution 2021-038: Hawthorne Solar LLC Tax Abatement**
 - **Sponsor / Presenter:** Brad and company representatives.
 - **Deliberation Summary:** Brad presented the \$88 million solar project by Narencos (National Renewable Energy Corporation) located on State Road 67 South of Albany. The project is expected to generate \$19.2 million in new revenue over its life, with a 10-year tax abatement valued at \$3.34 million. Council discussed potential impacts on local wildlife; representatives and staff noted that county zoning ordinances enforce pathways and restrictions protecting wildlife and preventing glare issues for birds. Construction is targeted for late 2024 through 2025.

- **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved via roll call vote (Ms. Lasseter abstained; all other members voted "Yes") 00:22:19.
- 00:23:32 **Financial Transfers & Line-Item Adjustments**
 - **Various Departments:** The council processed routine and corrective fund transfers across multiple departments, including the Commissioners, Communication Center, Clerk, Circuit Court, Family Support, Prosecutor, Sheriff, Highway, Pre-Trial Diversion, and Jail.
 - **Key Details:**
 - *Circuit Court:* Approved a \$2,000 transfer for 14 new computer monitors necessitated by an unexpected Odyssey software upgrade that rendered old CRT box monitors incompatible 00:26:04. Carrie Buck (Court Administrator Assistant) explained that the software vendor provided insufficient notice regarding hardware display requirements.
 - *Commissioners:* Approved a \$60,000 transfer to telephone lines to cover increasing AT&T monthly bills for fiber connectivity 00:43:12, and a \$50,000 transfer for part-time personnel following a detailed three-year historical review presented by Jenny 00:48:11.
 - **Action & Vote Disposition:** All presented departmental transfers resulted in a net request of zero and were approved via roll call votes.
- 00:34:19 **Project Income Line Item (Taken Off Table)**
 - **Sponsor / Presenter:** County Council.
 - **Deliberation Summary:** The item tabled from September was formally removed from the table and amended to reflect updated amounts (a140 Surveillance Officer minus \$12,394 to 311 Contract Monitoring plus \$12,394) 00:35:03.
 - **Action & Vote Disposition:** Approved as amended via roll call vote 00:35:48.
- 00:53:26 **Additional Appropriations (EDIT, Grants, & Highway Match)**
 - **Sponsor / Presenter:** County staff.
 - **Deliberation Summary:**
 - *EDIT Projects:* Approved a \$2,000,000 appropriation to fund the remainder of the 2019<U+2013>2022 EDIT plan ending in July 00:53:30. Staff noted unexpected major expenditures earlier in the year, including \$795,000 for the 9-1-1 phone system (which was partially un-reimbursable under grant rules) and \$215,000 for court BIS equipment.
 - *GIS, EMA, and Bridge/Highway Community Crossing Grants:* Approved multiple grant-funded appropriations, including a \$5,000 GIS Ball Brothers grant 00:56:09, \$116,194 for Bridge Community Crossing projects (structure replacement on 800 East and pipelining on 1100 North) 00:58:11, \$353,455 for Highway Community Crossing road projects (approx. 4 miles along 600 West) 00:59:40, a matching highway restricted fund transfer 01:01:41, and a \$5,000 EMA Ball Brothers grant for small engine aircraft equipment 01:06:31.

- **Action & Vote Disposition:** All appropriations approved via roll call votes.
 - **01:08:11 Board & Commission Appointments**
 - **Item Identifier & Title:** Yorktown Library Board Appointment
 - **Sponsor / Presenter:** County Council.
 - **Deliberation Summary:** Carolyn Klein Gantt was nominated and expressed enthusiasm to serve on the Yorktown Library Board.
 - **Action & Vote Disposition:** Approved by Voice Vote / Passed Unanimously
01:09:07.
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5. Open Public Comment / Citizen Forum

- **01:11:45 Captain Tony Johnson (Delaware County Sheriff's Office):**
 - Addressed the council to thank them for steps taken regarding pay disparity in the current budget, but emphasized that more work is needed to prevent talented deputies and correction officers from leaving for higher-paying agencies.
 - Raised concerns regarding a pending \$400,000 paid grievance filed by the UAW union on behalf of sheriff's personnel who worked during county building closures in early 2020 (March 23 <U+2013> May 5) under a collective bargaining agreement requiring time-and-a-half pay.
 - Noted that Delaware County received \$3.5 million in CARES Act funding, and argued that public safety personnel who worked through COVID-19 exposures qualify under state guidelines to have these back-pay grievances settled using federal funds. Distributed documentation to the council and requested a motion at the next meeting to settle the grievance.
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6. Administrative Updates & Adjournment

- **Staff / Board Announcements:** Council members noted an upcoming budget vote scheduled for Thursday to finalize figures for the auditor 01:10:27.
 - **Adjournment:** The meeting was officially adjourned following a motion by Ms. Piper and a second by Mr. Ballard, approved via roll call vote 01:17:48.
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